

The court first considers the adequacy of the moving parties' efforts to meet and confer to work discovery issues out before resorting to a motion to compel further responses. Code of Civil Procedure section 2016.040 requires a declaration "showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion" to compel. Moving Defendants' counsel's attached declaration states that Moving Defendants' counsel served the discovery requests at issue on March 11, 2026 and received Plaintiff's responses thereafter (Plaintiff's declaration states responses were served April 28, 2026). (Declaration of Noah Phillips in Support of Motion to Compel Further Responses to Requests for Production at ¶¶ 2-3.) Moving Defendants' counsel sent Plaintiff a meet and confer letter on April 30, 2026. (*Id.* at ¶¶ 6-7, Exhibit A.) On May 8 Plaintiff's counsel told Moving Defendants he would try to obtain the desired records via an informal process. (*Id.* at ¶ 11.) Moving Defendants filed the instant motion on May 11, 2026.

The trial court has discretion in determining whether adequate meet and confer efforts preceded the filing of the motion. (*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424 [factors include complexity of discovery issues, history of counsel in prior disputes, judge's gut feeling; sending one brief letter 13 days prior to deadline to file motion was not sufficient attempt].)

Moving Defendants' meet and confer efforts were inadequate. While Moving Defendants' meet and confer letter properly explained the simple problem Moving Defendants perceived with Plaintiff's responses, Moving Defendants did not give Plaintiff an appropriate chance to address deficiencies. On May 8 Plaintiff stated it would attempt to obtain the material Moving Defendants sought but Plaintiff filed the instant motion only three days later rather than wait to see what Plaintiff delivered.

Though meet and confer efforts are assessed by the state of affairs prior to the filing of a motion to compel the court further observes that developments subsequent to filing illustrate the potential for informal resolution here. Plaintiff states that Moving Defendants were provided information and Plaintiff inquired if Moving Defendants were satisfied; Moving Defendants stated they were not but still did not attempt to resolve outstanding disputes informally, instead choosing to continue with this prematurely filed motion.

Moving Defendants' motion is denied on the basis of insufficient meet and confer efforts pre-filing.

ANTHONY SMITH vs. HARSHAD B. WADHAR, MD
Case No. CU24-07285

Plaintiff's Motion to Compel Further Responses to Requests for Production, Set Three

TENTATIVE RULING

On the Court's own motion, the motion to compel is continued to August 25, 2026 at 9:00 a.m. in Department Seven.

YVONNE GARCIA; ET AL. vs. PRIME ASCOT, LP
Case No. CU25-05130

Motion to Strike

TENTATIVE RULING

Defendant Prime Ascot, LP's motion to strike is granted without leave to amend.

Although Defendant's motion is untimely, having been filed after the filing of an answer (Code Civ. Proc. § 435(b)(1); *City and County of San Francisco v. Strahlendorf* (1992) 7 Cal.App.4th 1911, 1913; *Adohr Milk Farms, Inc. v. Love* (1967) 255 Cal.App.2d 366, 371), the court may "at any time in its discretion", strike out all or part of any pleading it deems to be not drawn or filed in conformity with the laws of the state, a court rule, or an order of the court (Code Civ. Proc. § 436(b)).

Punitive damages may be awarded for the breach of an obligation not arising from contract if the defendant is guilty of oppression, fraud, or malice. (Civ. Code § 3294(a).) Without actual intent to cause injury, both malice and oppression require despicable conduct carried out in conscious disregard of the rights of others. (Civ. Code § 3294(c); *Turman v. Turning Point of Cent. Cal., Inc.* (2010) 191 Cal.App.4th 53, 63.) "Despicable conduct" is conduct that is so "vile, base, contemptible, miserable, wretched or loathsome" that it causes the type of outrage often associated with crime. (*Johnson & Johnson Talcum Powder Cases* (2019) 37 Cal.App.5th 292, 332.) Punitive damages may be imposed for a landlord's failure to repair. (*Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, 920.)

An employer may not be held liable for punitive damages based on the actions of an employee "unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are award or was personally guilty of oppression, fraud, or malice." (Civ. Code § 3294(b).) If the employer is a "corporate employer", the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be by an officer, director, or managing agent of the corporation. (*Ibid.*)

A plaintiff must plead specific facts to show entitlement to punitive damages. (*Today's IV v. Los Angeles County Metro. Transp. Auth.* (2022) 83 Cal.App.5th 1137, 1193; *Noonan v. Rousselot* (1966) 239 Cal.App.2d 447, 453.) Conclusory characterizations of a defendant's conduct as intentional, willful, or fraudulent are insufficient. (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.)